17. Same; presumption.—Any American citizen shall be deemed to have expatriated himself when he has been naturalized in any foreign State in conformity with its laws, or when he has taken an oath of allegiance to any foreign State.

When any naturalized citizen shall have resided for two years in the foreign State from which he came, or for five years in any other foreign State it shall be presumed that he has ceased to be an American citizen, and the place of his general abode shall be deemed his place of residence during said year. Such presumption may be overcome on the presentation of satisfactory evidence to a diplomatic or consular officer of the United States, under such rules and regulations as the Department of State may prescribe. Duplicates of any evidence, registration, or other acts required by this section shall be filed with the Department of State for record. (Mar. 2, 1907, c. 2534, §§ 2, 7, 34 Stat. 1229.)

18. Repatriation of expatriated citizens.—Any person who, while a citizen of the United States and during the World War in Europe, entered the military or naval service of any country at war with a country against whom the United States declared war, who shall be deemed to have lost his citizenship by reason of any oath or obligation taken by him for the purpose of entering such service, may resume his citizenship by taking the oath of allegiance to the United States prescribed by the naturalization law and regulations, and such oath may be taken before any court of the United States or of any State authorized by law to naturalize aliens or before any consul of the United States, and certified copies thereof shall be sent by such court or consul to the Department of State and the Bureau of Naturalization. (June 29, 1906, c. 3592, § 4, 34 Stat. 596; June 25, 1910, c. 401, § 3, 36 Stat. 830; May 9, 1918, c. 69, §§ 1-3, 40 Stat. 542-548.)

Chapter 2.—ELECTIVE FRANCHISE.

Sec.
31. Race, color, or previous condition not to affect right to vote.
32. Interference with freedom of elections.

Section 31. Race, color, or previous condition not to affect right to vote.—All citizens of the United States who are otherwise qualified by law to vote at any election by the people in any State, Territory, district, county, city, parish, township, school district, municipality, or other territorial subdivision, shall be entitled and allowed to vote at all such elections, without distinction of race, color, or previous condition of servitude; any constitution, law, custom, usage, or regulation of any State or Territory, or by or under its authority, to the contrary notwithstanding. (R. S. § 2004.)

32. Interference with freedom of elections.—No officer of the Army or Navy of the United States shall prescribe or fix, or attempt to prescribe or fix, by proclamation, order, or otherwise, the qualifications of voters in any State, or in any manner interfere with the freedom of any election in any State, or with the exercise of the free right of suffrage in any State. (R. S. § 2003.)

Chapter 3.—CIVIL RIGHTS.

Sec.
41. Equal rights under the law.
42. Property rights of citizens.
43. Civil action for deprivation of rights.
44. Exclusion of jurors on account of race or color.
45. Same; jurisdiction of prosecutions.
46. Same; review of proceedings.
47. (1) Conspiracies; preventing officer from performing duties. (2) Same; to intimidate party, witness or juror, or obstruct justice. (3) Same; to deprive citizen of rights or privileges.
48. Same; action for neglect to prevent.
49. Prosecution of violation of certain laws.
50. Commissioners; appointment of persons to execute warrants.
51. Marshal; to obey precepts; refusing to receive or execute process.
52. Fees; certain officers.
53. Same; persons appointed to execute process.
54. Speedy trial.
55. Aid of military and naval forces.
56. Peonage abolished.

Section 41. Equal rights under the law.—All persons within the jurisdiction of the United States shall have the same right in every State and Territory to make and enforce contracts, to sue, be parties, give evidence, and to the full and equal benefit of all laws and proceedings for the security of persons and property as is enjoyed by white citizens, and shall be subject to like punishment, pains, penalties, taxes, licenses, and exactions of every kind, and to no other. (R. S. § 1977.)

42. Property rights of citizens.—All citizens of the United States shall have the same right, in every State and Territory, as is enjoyed by white citizens thereof to inherit, purchase, lease, sell, hold, and convey real and personal property. (R. S. § 1978.)

43. Civil action for deprivation of rights.—Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress. (R. S. § 1979.)

44. Exclusion of jurors on account of race or color.—No citizen possessing all other qualifications which are or may be prescribed by law shall be disqualified for service as grand or petit juror in any court of the United States, or of any State, on account of race, color, or previous condition of servitude; and any officer or other person charged with any duty in the selection or summoning of jurors who shall exclude or fail to summon any citizen for the cause aforesaid shall, on conviction thereof, be deemed guilty of a misdemeanor, and be fined not more than $5,000. (Mar. 1, 1875, c. 114, § 4, 18 Stat. 336.)

45. Same; jurisdiction of prosecutions.—The district courts of the United States shall have, exclusively of the courts of the several States, cognizance of all crimes and offenses against, and violations of, the provisions of the preceding section. The district attorneys, marshals, and deputy marshals of the United States, and United States commissioners with powers of arresting and imprisoning or bailing offenders against the laws of the United States, are hereby specially authorized and required to institute proceedings against every person who shall violate the provisions of the preceding section, and cause him to be arrested and imprisoned or bailed, as the case may be, for trial before such court of the United States, or Territorial court, as by law has cognizance of the offense, and such district attorneys shall cause such proceedings to be prosecuted to their termination as in other cases. Nothing contained in this section shall be construed to deny or defeat any right of civil action accruing to any person, whether by reason of this act or otherwise; and any district attorney who shall willfully fail to institute and prosecute the proceedings herein required, shall, for every such offense, forfeit and pay the sum of $500 to the person aggrieved thereby, to be recovered by an action of debt, with full costs, and shall, on conviction thereof, be deemed guilty of a misdemeanor, and be fined not less than $1,000 nor more than $5,000. Judgment for the penalty in favor of the party aggrieved against any such district attorney, or a judgment upon an indictment against any such district attorney, shall be a bar to either prosecution respectively. (Mar. 1, 1875, c. 114, § 3, 18 Stat. 336.)

46. Same; review of proceedings.—All cases arising under the provisions of section 41 of this title in the courts of the United States shall be reviewable by the Supreme Court of the